SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Criminal Appeal No. 943 of 2005 **CNR: SCIN010009432005**

Date: 29 October, 2010 *Citation: (2011) 1 SCC 609*

CORAM: Hon'ble D.K. Jain, P. Sathasivam, C.K. Prasad, R.M. Lodha, H.L. Dattu, JJ.

Petitioner: Vijaysinh Chandubha Jadeja

- VERSUS -

Respondent: State of Gujarat

DOMAIN: NARCOTICS LAW & SEARCH PROTOCOL **STATUS: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

The concept of 'substantial compliance' with Section 50 of the NDPS Act is neither permissible nor acceptable. The suspect has an indefeasible right to be searched before a Gazetted Officer or Magistrate.

STATUTES APPLIED: Section 50 NDPS, Section 42 NDPS

DISPOSITION: STRICT COMPLIANCE WITH SECTION 50 NDPS MANDATED

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench held that substantial compliance with Section 50 NDPS is insufficient; there must be strict compliance with the requirement of searching the suspect in the presence of a Gazetted Officer or Magistrate.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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